

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ONE BANANA NORTH AMERICA CORP., *Complainant*

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC,
Respondents.

DOCKET NO. 22-03

Served: June 22, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

REVISED SCHEDULING ORDER

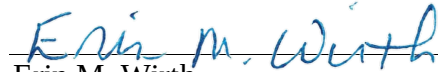
On June 17, 2022, Complainant One Banana North America Corp (“One Banana”) and Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) (collectively “Hapag”) filed a joint motion requesting the extension of deadlines. The parties request the extension to review approximately 20,000 pages of documents and due to delays caused by a cyber-attack.

Good cause has been shown for the requested extension and the extended deadlines proposed by the parties are reasonable. Due to the Commission’s deadline for the initial decision in this proceeding, additional extensions may not be permitted and the parties should be prepared to meet all of these deadlines. Accordingly, it is hereby **ORDERED** that the scheduling order be revised as follows:

August 1, 2022	Target for substantial completion of productions of documents and ESI in response to initial RFPs.
August 5, 2022	Target for exchange of privilege logs.
August 31, 2022	Target to complete depositions of fact witnesses.
September 9, 2022	Disclosure of initial expert reports.
September 16, 2022	Last day to serve discovery requests.
September 23, 2022	Disclosure of rebuttal expert reports.
September 30, 2022	Complete expert depositions.
October 7, 2022	Close of all discovery.
November 4, 2022	Complainant’s brief, proposed findings of fact, and appendix.
December 2, 2022	Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
December 16, 2022	Complainant’s reply brief and responses to proposed findings of fact.

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Accordingly, it is hereby ordered that the parties’ joint motion seeking an extension of deadlines be **GRANTED**.


Erin M. Wirth
Chief Administrative Law Judge